

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
Maleek Davis,

Plaintiffs

-against-

City of New York, New York City Police Department,
Police Officer Brian Cohen, Tax Reg # 958416 of the 101
Precinct, Sergeant Patrick McGrath, Tax Reg # 933984 of
the 101 Precinct and New York City Police Officers John
Doe,

Defendants
-----X

:
:
: AMENDED VERIFIED
COMPLAINT
:
:

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff Maleek Davis (hereinafter referred to as "DAVIS") is a resident of Queens County, State of New York.
2. That at all times hereinafter mentioned, Police Officer Brian Cohen, Tax Reg # 958416 of the 101 Precinct (hereinafter referred to as "COHEN") was employed by the New York City Police Department.
3. That at all times hereinafter mentioned, Sergeant Patrick McGrath, Tax Reg # 933984 of the 101 Precinct (hereinafter referred to as "MCGRATH") was employed by the New York City Police Department.

4. That at all times hereinafter mentioned, Police Officers John Doe, the officers involved in the arrest of DAVIS (hereinafter referred to as "DOES") were employed by the New York City Police Department.

5. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

6. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

7. On or about January 12, 2021 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

8. That on or about August 2, 2021, a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

9. That on or about June 7, 2020 at approximately 12:00 AM in the vicinity of 54-81 Almeda Avenue, Queens County, New York, Plaintiff was with a group of his friends, one of whom was setting off fireworks.

10. That at no time did Plaintiff possess any fireworks.

11. That at no time did Plaintiff light any fireworks.

12. That at no time did Plaintiff set off any fireworks.

13. That at no time did Plaintiff deal with fireworks.
14. That at no time did Plaintiff sell fireworks.
15. That at no time did Plaintiff attempt to cause injury to anyone by using a firework.
16. That despite the fact that Plaintiff did not engage in any criminal or unlawful activity, COHEN, MCGRATH and DOES stopped, handcuffed and arrested Plaintiff.
17. That after Plaintiff was arrested, he was transferred to the 101 precinct.
18. That while Plaintiff was held in the 101 precinct, he was subjected to a strip search and that nothing of an illegal nature was recovered.
19. That while Plaintiff was held in the 101 precinct he was confined to a cell with numerous other male prisoners for several hours.
20. That after spending several hours in the 101 precinct, he was removed to Queens County Criminal Court, located at 125-01 Queens Boulevard, Queens, NY.
21. That while Plaintiff was held in Queens County Central Booking, he was confined to a cell with numerous other male prisoners.
22. That on or about June 8, 2020 Plaintiff was arraigned on docket CR-010573-20QN charging him with Unlawfully Dealing with Fireworks, Unlawfully Selling Fireworks and Attempted Assault in the Second Degree.
23. That at the time of his arraignment, Plaintiff was released from custody and his case was adjourned to another date.
24. That on and between June 8, 2020 and January 27, 2021, Plaintiff made several court appearances until the matter was dismissed upon application of the Office of the Queens County District Attorney.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS

25. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 24, as if more fully stated herein at length.

26. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.

27. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

28. That as a result of the actions by Defendants, Plaintiff was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

29. That as a result of the Defendants' actions, Plaintiff has been unable to sleep.

30. That as a result of the Defendants' actions, Plaintiff missed several days from work.

31. That as a result of the Defendants' actions Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS

32. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 31, as if more fully stated herein at length.

33. The intentional verbal abuse, false arrest, false imprisonment and malicious prosecution by Defendants violated the rights of the Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

34. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless, unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff is entitled to both compensatory and exemplary damages.

AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS

35. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 34, as if more fully stated herein at length.

36. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff is entitled to both compensatory and exemplary damages, as well as attorney's fees.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS

37. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 36, as if more fully stated herein at length.

38. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest, false imprisonment and malicious prosecution on and of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

39. That during the pendency of the case, Defendants maliciously prosecuted Plaintiff by continuing to cooperate in a prosecution when Plaintiff should never have been arrested. Plaintiff is thus entitled to compensatory and exemplary damages.

40. That prior to the time of arrest, after the arrest and during the pendency of the criminal case against Plaintiff, COHEN, MCGRATH and DOES persisted in their claim that Plaintiff engaged in illegal and unlawful conduct despite knowing that he had not.

**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

41. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 40, as if more fully stated herein at length.

42. At all times pertinent hereto, COHEN, MCGRATH and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

43. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that COHEN, MCGRATH and DOES committed within the scope of her employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND
NEW YORK CITY POLICE DEPARTMENT**

44. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 43, as if more fully stated herein at length.

45. The City of New York and New York City Police Department's failure to provide adequate training and supervision to COHEN, MCGRATH and DOES constitutes a willful and

wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory exemplary damages.

46. That the City of New York and New York City Police Department knew that COHEN had seven (7) previous Civilian Complaint Review Board complaints and yet the continued to employ COHEN.

47. That the City of New York and New York City Police Department knew that MCGRATH had twelve (12) previous Civilian Complaint Review Board complaints and yet the continued to employ COHEN.

48. That the City of New York and New York City Police Department knew that MCGRATH had a lawsuit brought against him in the United States District Court for the Eastern District of New York under index number 13CV05699, Fashakin v. City of New York wherein the City of New York compensated the Plaintiff and despite such, MCGRATH continued his employment as a New York City Police Officer.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK
AND NEW YORK CITY POLICE DEPARTMENT**

49. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 48 as if more fully stated herein at length.

50. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

51. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory

that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

On the first cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts;

On the second cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the third cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

On the fourth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

On the fifth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

On the sixth cause of action, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

On the seventh cause of action, a sum within the jurisdiction of this Court and in excess of all inferior courts.

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